

BO LAO DONG VIET NAM

THONG TU 10/2020/TT-BLDTBXH

Huong dan mot so noi dung ve hop dong lao dong

CHUONG I: HO SO KY KET HOP DONG LAO DONG

Dieu 3. Ho so ky ket hop dong lao dong

1. Nguoi lao dong khi ky ket hop dong lao dong gui nguoi dung lao dong cac giay to sau:
 - a) Chung minh nhan dan (CMND) hoac The can cuoc cong dan (CCCD) hoac Ho chieu;
 - b) So so BHXH (neu co);
 - c) Bang, chung chi, chung nhan, phu cap chuyen mon (neu co yeu cau).
2. Nguoi dung lao dong khong duoc yeu cau nguoi lao dong cung cap giay to khong lien quan den viec thuc hien hop dong lao dong.

Dieu 4. Noi dung hop dong lao dong

1. Hop dong lao dong phai co cac noi dung chinh:
 - a) Viec lam va dia diem lam viec cu the;
 - b) Thoi han lam viec (duoi 01 thang, 01 thang tro len, 01 nam tro len hoac khong xac dinh thoi han);
 - c) Thoi gian lam viec va thoi gian nghi phep hang nam;
 - d) Muc luong, phu cap, che do phuc loi;
 - e) QUYEN va NGHIA VU cua hai ben.

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CHUONG II: THOA THUAN VE NOI DUNG TAM NGUNG THUC HIEN HDLD

Dieu 5. Cac truong hop tam ngung thuc hien hop dong lao dong

1. Nguoi lao dong va nguoi dung lao dong co the thoa thuan tam ngung thuc hien hop dong lao dong trong cac truong hop:
 - a) Nguoi lao dong phai tam ngung viec do tai nan lao dong, benh ngan dai;
 - b) Nguoi dung lao dong tam ngung san xuat, kinh doanh;
 - c) Do nhu cau ca nhan cua nguoi lao dong.
2. Thoi gian tam ngung thuc hien hop dong lao dong khong tinh vao thoi han hop dong lao dong.